

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 28, 2026, AT 8:30 A.M.

13. T-CV-0002564 AMERICAN EXPRESS NAT’L v. CALVERT, RICHARD

The motion for summary judgment is dropped from calendar as no moving papers were filed with the court.

14. T-CV-0002762 SIVEL, KATHLEEN v. LAHONTAN GOLF CLUB

Defendant’s Motion to Compel Binding Arbitration

Defendant moves to compel binding arbitration pursuant to Code of Civil Procedure section 1281.2.

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then “bears the burden of proving by a preponderance of the evidence any fact necessary to its defense” including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant meets their initial burden that an agreement to arbitrate exists between plaintiff and defendant. (Woo Dec’l, Ex. A.) As such, the burden shifts to plaintiff.

Plaintiff does not oppose the motion and thus does not meet her burden.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant’s motion to compel arbitration is granted. The matter shall be stayed pending resolution of arbitration. (Code Civ. Proc., § 1281.4.)

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Defendant shall be responsible for arbitration fees and costs. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 110.)

The court sets an order to show cause re: selection of arbitrator for June 25, 2026, at 9:00 a.m. in Department 3. The parties shall meet and confer in good faith, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select a mutually agreed upon arbitrator. On or before June 11, 2026, the parties shall file a joint declaration detailing their meet and confer efforts and whether they have mutually agreed upon an arbitrator. If the parties timely file a joint declaration with a mutually agreed upon arbitrator, then the June 25, 2026, hearing shall be dropped. If the parties cannot agree on an arbitrator, then each party shall submit 3 arbitrators in their joint declaration for the court to select at the June 25, 2026, hearing. Personal appearances shall be required at the June 25, 2026, hearing.

The court additionally schedules this matter for an Order to Show Cause re: status of arbitration on Tuesday, October 20, 2026, at 9:00 a.m. in Department 32.